

25STCV12113 25STCV12113

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Case Number: 25STCV12113 Hearing Date: July 6, 2026 Dept: 509

Julius Jay Lite, et al. vs Travelers Casualty Insurance Company, et al.

MOTION TO QUASH

MOVING PARTY: Plaintiffs 120 West 131st Street LLC and Julius Jay Lite

RESPONDING PARTY(S): Defendant Travelers Casualty Insurance Company

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an action for damages arising out of a breach of contract and insurance bad faith resulting from a denial of a commercial insurance policy. Plaintiffs 120 West 131st Street LLC and Julius Jay Lite (Plaintiffs) bring this action against defendants Travelers Casualty Insurance Company and Defeng Yu. Plaintiffs allege causes of action for: (1) breach of contract; (2) breach of the implied covenant of good faith and fair dealing; (3) unfair business Practices Business & Professions Code section 17200; (4) financial elder abuse; and (5) breach of lease.

Plaintiffs now moves to quash the deposition subpoenas for production of business records issued by Travelers Casualty Insurance Company (Defendant) directed to East West Bank for Plaintiffs' financial records. Plaintiffs opposed.

TENTATIVE RULING:

Plaintiffs' Motion to Quash is DENIED.

Defendant is ordered to give notice, unless waived.

DISCUSSION:

Motion to Quash

A. Request for Judicial Notice

Defendant requests that this Court take judicial notice of nineteen different documents. The Court DENIES this request as it is not relevant to the disposition of this motion. (See *Arce v. Kaiser Found. Health Plan, Inc.* (2010) 181 Cal. App. 4th 471, 482 [declining to take judicial notice of irrelevant matters].)

B. Objection to Evidence

Plaintiffs submit objections to Defendant's proposed evidence contained in the judicial notice.

This Court is unaware of any legal authority which requires a court to rule on evidentiary objections on a motion, except as to a motion for summary judgment/adjudication (Code Civ. Pro. § 437c, subd. (q)) or a special motion to strike (Code Civ. Pro. § 425.16, subd. (b)(2)); see also, *Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 947-949.)

As such, this Court respectfully declines to rule on these objections. This Court is well aware of the rules of evidence, and to how much weight, if any, should be given to any of the proposed evidence.

C. Legal Standard

A court may quash a subpoena entirely or partially, and issue an order to protect parties, witnesses or consumers from unreasonable or oppressive demands including violations of privacy. (Code Civ. Proc., § 1987.1.) A motion to quash the production of documents or tangible things requires a separate statement. (Cal. Rules of Court, rule 3.13459(a)(5).) “[U]pon motion reasonably made by the party, judges may rule upon motions for quashing, modifying or compelling compliance with, subpoenas.” (*Lee v. Swansboro Country Property Owners Ass'n* (2007) 151 Cal.App.4th 575, 582-583.)

D. Analysis

Plaintiffs move to quash deposition subpoenas for production of business records issued by Defendant directed to East West Bank for Plaintiffs' financial records (the Subpoena).

The Subpoena states:

1. Any and all DOCUMENTS submitted to YOU to create or open 120 WEST's Account # 80-32012182, including but not limited to any Deposit Account Application, Deposit Account Agreement, and any signed Signature Card.
2. Any and all DOCUMENTS EVIDENCING, bank statements for 120 WEST's Account # 80-32012182 from January 1, 2023 to May 1, 2025.
3. Any and all DOCUMENTS EVIDENCING COMMUNICATIONS from January 1, 2023 to May 1, 2025 with any PERSON purporting to represent 120 WEST, including but not limited to Julius Jay Lite, concerning the source of cash deposits into Account # 80 32012182 from January 1, 2023 to May 1, 2025 where the total amount deposited was \$10,000.00 or more.

(Anapol Decl., Exhibit 1.)

Plaintiffs' position is: “(1) the subpoena violates plaintiffs' constitutional and statutory rights to financial privacy under the California Constitution, Article I, Section 1, and California Financial Information Privacy Act (Financial Code §§ 4050 et seq.);

and (2) the subpoena is overbroad, unduly burdensome, and seeks records that are neither relevant to the subject matter of this action nor reasonably calculated to lead to the discovery of admissible evidence.” (Not. of Mot. at p. 2:4-9.)

“The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (Williams v. Superior Ct. (2017) 3 Cal.5th 531, 552.) Because Plaintiffs’ constitutional privacy rights are implicated, the burden is on Defendant to demonstrate that the information sought are both (1) directly relevant to claims or defenses in this action (Britt v. Superior Court (1978) 20 Cal.3d 844, 859), and (2) not available through a less intrusive means of discovery (Allen v. Superior Court (1984) 151 Cal.App.3d 447, 453)

Here, Plaintiffs have a recognized expectation of privacy in their respective financial records, although to an extent, they have reduced that privacy interest by bringing this case. When balancing Plaintiffs’ privacy interests against Defendant’s interest in discovering documents that are particularly relevant to Defendant’s defense of the action, this Court finds the balance shifts in favor of disclosure. The Court agrees with Defendant that the categories are relevant and not overbroad. It appears that the issue of rent collection goes directly to the heart of Defendant’s defense. (See Ans. ¶17, [“The Complaint and the recovery sought therein, are barred, in whole or in part, by the terms, conditions, definitions, limitations and exclusions contained in Policy number 680 OR104629-24-42 issued by Travelers (“Policy”).”]) The issues of rent collection, the formation and control 120 West 131st Street LLC, and 120 West 131st Street LLC’s operating income and expenses have been put in issue by bringing this action. (See e.g. Compl. at prayer ¶7, [“For loss of use of the property caused by defendant’s unreasonable delay in adjusting this claim.”]) It also appears there are no feasible alternatives to obtaining the documents sought.

Moreover, admissibility at trial is not to be mistaken with discoverability. “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Pro. § 2017.010; Davies v. Superior Court (1984) 36 Cal.3d 291, 301 [“discovery is not limited to admissible evidence”].) Evidence is relevant if it “ha[s] any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the action.” (Evid. Code § 210.) The discovery here sought is relevant, even if it is ultimately not admissible at trial, a question this Court expresses no opinion on now.

This conclusion is consistent with the legislature’s “very liberal and flexible standard of relevancy,” such that any “doubts as to relevance should generally be resolved in favor of permitting discovery.” (Williams, supra, 3 Cal.5th at p. 542.)

Accordingly, Plaintiffs’ Motion to Quash is DENIED. The third party is ordered to turn over all documents consistent with the Subpoena.

E. Sanctions

In making an order pursuant to California Code of Civil Procedure, section 1987.1, “the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2, subd. (a).)

However, neither party has sought sanction. Accordingly, the Court declines to award any expenses or attorney’s fees since neither party has formally or properly requested sanctions. (See, Code Civ. Pro. § 2023.040, [any request for sanctions must be contained in the notice of motion or opposition.])

IT IS SO ORDERED.

Dated: July 6, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.